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April 6, 2026

ENGROSSED HOUSE
BILL NO. 4440

By: Hilbert and Lepak of the
House

and

Paxton of the Senate

An Act relating to public health and safety; ordering a legislative referendum pursuant to the Oklahoma Constitution to amend the Oklahoma Constitution by repealing Sections 1, 2, 3 and 4 of Article XXV-A; ordering a legislative referendum; providing for enactment of statutes related to Medicaid and Medicaid expansion; defining terms; requiring certain medical services be made available to certain persons; imposing duty on Oklahoma Health Care Authority; providing ballot title; ordering a special election; and directing filing.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. The Secretary of State shall refer to the people for their approval or rejection, as and in the manner provided by law, the following proposed amendment to the Constitution of the State of Oklahoma by repealing Sections 1, 2, 3 and 4 of Article XXV-A of the Oklahoma Constitution.

SECTION 2. Pursuant to Section 3 of Article V of the Oklahoma Constitution, there is hereby ordered the following legislative referendum which shall be filed with the Secretary of State and addressed to the Governor of the state, who shall submit the same to

1 the people for their approval or rejection at the election to be
2 conducted on August 25, 2026.

3 SECTION 3. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 7401 of Title 63, unless there
5 is created a duplication in numbering, reads as follows:

6 As used in this act:

7 1. "Centers for Medicare and Medicaid Services" or "CMS" refers
8 to the agency responsible for administering the Medicaid program at
9 the federal level, including review and approval of State Plan
10 Amendments;

11 2. "Low-income adults" refers to those individuals over age
12 eighteen (18) and under age sixty-five (65) whose income does not
13 exceed one hundred thirty-three percent (133%) of the federal
14 poverty level, as described by and using the income methodology
15 provided in the federal Medicaid statute at 42 U.S.C., Section
16 1396a(a)(10)(A)(i)(VIII), and who meet applicable nonfinancial
17 eligibility conditions for Medicaid under 42 CFR, Part 435, Subpart
18 E;

19 3. "Medical assistance" means payment of part or all of the
20 cost of the care and services, or the care and services themselves,
21 or both, as provided in the federal Medicaid statute, 42 U.S.C.
22 Section 1396 et seq.;

1 4. "Oklahoma Health Care Authority" refers to the single state
2 agency responsible for administering the Oklahoma Medicaid program
3 pursuant to 42 U.S.C., Section 1396a(a)(5); and

4 5. "State Plan Amendment" refers to the document(s) the state
5 submits to the Centers for Medicare and Medicaid Services for review
6 and approval before making a change to its program policies,
7 including setting forth the groups of individuals to be eligible for
8 medical assistance.

9 SECTION 4. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 7402 of Title 63, unless there
11 is created a duplication in numbering, reads as follows:

12 In addition to those otherwise eligible for medical assistance
13 under Oklahoma's Medicaid program, the state shall provide medical
14 assistance under Oklahoma's Medicaid program to low-income adults.

15 SECTION 5. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 7403 of Title 63, unless there
17 is created a duplication in numbering, reads as follows:

18 The Oklahoma Health Care Authority shall take all actions
19 necessary to maximize federal financial participation in funding
20 medical assistance pursuant to this act.

21 SECTION 6. The Ballot Title for the proposed Constitutional
22 amendment repealing Sections 1, 2, 3 and 4 of Article XXV-A of the
23 Oklahoma Constitution and the enactment of statutory provisions
24

1 related to Medicaid as set forth in Sections 2 through 5 of this
2 measure shall be in the following form:

3 BALLOT TITLE

4 Legislative Referendum No. _____ State Question No. _____

5 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

6 This measure proposes an amendment to the Oklahoma Constitution
7 by repealing Sections 1, 2, 3 and 4 of Article 25-A, and it also
8 proposes the enactment of substantially the same language from
9 those constitutional sections as statutes. If this question
10 passes, then the sections from the Oklahoma Constitution would
11 be repealed, but the substantive language related to Medicaid
12 from the constitutional sections would become enacted as
13 statutes of the State of Oklahoma. The statutes could be
14 amended, repealed, or otherwise modified by the Legislature
15 pursuant to the same procedures that allow enactment of laws
16 during any regular or extraordinary session of the Legislature.

17 SHALL THE PROPOSAL BE APPROVED?

18 FOR THE PROPOSAL — YES _____

19 AGAINST THE PROPOSAL — NO _____

20 SECTION 7. A special election is hereby ordered to be held
21 throughout the State of Oklahoma on the date of August 25, 2026, at
22 which time the proposed amendment to the Constitution of the State
23 of Oklahoma, as set forth in SECTION 1 of this act, shall be

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1 submitted to the people of Oklahoma for their approval or rejection
2 as and in the manner provided by law.

3 SECTION 8. The Chief Clerk of the House of Representatives,
4 immediately after the passage of this measure, shall prepare and
5 file one copy thereof, including the Ballot Title set forth in
6 SECTION 6 hereof, with the Secretary of State and one copy with the
7 Attorney General.

8 COMMITTEE REPORT BY: COMMITTEE ON RULES
9 April 6, 2026 - DO PASS
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